

Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1199–1200, citations omitted.)

“Pursuant to section 387 the trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action.” (*Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 386, citation omitted.)

“An insurer’s right to intervene in an action against the insured, for personal injury or property damage, arises as a result of Insurance Code section 11580. Section 11580 provides that a judgment creditor may proceed directly against any liability insurance covering the defendant, and obtain satisfaction of the judgment up to the amount of the policy limits. Thus, where the insurer may be subject to a direct action under Insurance Code section 11580 by a judgment creditor who has or will obtain a default judgment in a third party action against the insured, intervention is appropriate. The insurer may either intervene in that action prior to judgment or move under Code of Civil Procedure section 473 to set aside the default judgment. Where an insurer has failed to intervene in the underlying action or to move to set aside the default judgment, the insurer is bound by the default judgment.” (*Id.* at pp. 386–387, citations omitted.)

“It is undisputed that if the insurer admits coverage, the insurer clearly has a direct and immediate interest in the outcome of the action against its insured, and therefore may intervene.” (*Gray v. Begley* (2010) 182 Cal.App.4th 1509, 1522.) “[C]ase authority is in agreement that insurers may intervene in third party actions brought against their insureds in order to protect their own interests when their insureds are unable to defend.” (*Western Heritage Ins. Co. v. Superior Court* (2011) 199 Cal.App.4th 1196, 1207.)

In the present case, Columbia is the insurer of defendant Four Seasons Contracting, and thus it is potentially liable if Four Seasons is found to be at fault for the accident. Four Seasons’ corporate status has been suspended, so it no longer has the right to appear and defend itself in the case. (Exhibit 1 to Podesta decl.) Four Seasons is in danger of having a default judgment entered against due to its inability to defend itself. Columbia would be directly prejudiced if a default judgment is entered against Four Seasons, since Columbia would be liable to pay up to the policy limits. Also, plaintiffs are not likely to suffer any prejudice if Columbia is allowed to intervene, since Columbia is not likely to expand the issues of the case and the trial is not likely to be delayed if it intervenes. On the other hand, Columbia is likely to suffer real prejudice if the motion is denied, since it will be required to pay damages to plaintiffs based on Four Seasons’ inability to defend itself. Therefore, the court intends to allow Columbia to intervene and file an answer in order to defend its rights in the action.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/15/2026.
(Judge's initials) (Date)

(41)

Tentative Ruling

Re: ***Karen Kimura v. Isidro Franco***
Superior Court Case No. 24CECG00954

Hearing Date: September 16, 2026 (Dept. 503)

Motion: Default Prove-up

Tentative Ruling:

To deny without prejudice.

Explanation:

Plaintiff Karen Kimura alleges she hired defendant Isidro Franco in 2022 to paint, stain, and glaze certain cabinetry work at her home, then in 2023 she hired defendant to paint certain windows and walls at her home. Plaintiff alleges two separate breach of contract causes of action in her first amended complaint—the first to paint the cabinets and the second to paint the windows and walls. Plaintiff attaches defendant's proposals to the first amended complaint. The unsigned proposals consist of a list of what is to be painted and a description of the labor and quoted price for all work on each proposal. The written proposed price was \$66,000 to paint the cabinets, which plaintiff alleges was increased to \$67,900 (FAC, ¶ 9), and \$53,600 to paint the windows and walls.

Plaintiff alleges defendant did not perform the work to her satisfaction, which resulted in substantial damage to the cabinets, adjacent granite, and windows. Furthermore, defendant abandoned the job in the middle of the work due to personal issues. Plaintiff alleges she paid \$45,000 on the contract for the cabinets and \$6,000 on the contract for the walls and windows.

In addition to prejudgment interest and costs, plaintiff seeks to recover damages of \$219,110.55 consisting of:

\$51,000.00	Reimbursement for amounts paid to defendant
\$10,214.82	Pacific Stone Granite to repair damage caused by defendant
\$25,350.00	Federico Soto Repair
\$36,778.68	Replace damaged cabinets
\$ 187.05	Replace damaged window
\$94,500.00	For construction manager
\$ 1,080.00	For port-a-potty rental

In her original complaint, Plaintiff failed to include a specific amount for damages. Thereafter, plaintiff filed and personally served her first amended complaint, which includes specific amounts for damages of not less than \$219,110.55, plus prejudgment interest, attorney fees and costs. The first amended complaint has six "causes of action" entitled: (1) Breach of Contract; (2) Breach of Contract; (3) Unjust Enrichment; (4) Breach of Implied Warranty; (5) Negligence; and (6) Negligence Per Se.

Measure of Damages:

Plaintiff correctly acknowledges that by defendant's default, defendant has admitted the material allegations of the first amended complaint. (*Ingram v. Bob Jaffe Co.* (1956) 139 Cal.App.2d 193, 195.) Plaintiff also recognizes that a default does not admit that the amount prayed for is the proper amount of damages. (*Brown v. Superior Court* (1966) 242 Cal.App.2d 519, 526.) The court is required to enter judgment only for such sum as appears just. (Code Civ. Proc., § 585, subd. (b).) Without the required evidence, the court may refuse to enter judgment in any amount, notwithstanding defendant's default. (*Taliaferro v. Hoogs* (1963) 219 Cal.App.2d 559, 560.)

Plaintiff submits a three-page declaration, with over two hundred pages of photographs of the damaged windows, cabinets, and wood ceiling, plus several pages of invoices. In her amended complaint, plaintiff alleges she made three payments totaling \$45,000, but she makes no mention of these payments in her declaration, nor does she provide evidence of her other alleged payments, such as cancelled checks, proof of cash payments, etc. In her declaration plaintiff itemizes her damages, but her evidence of payments is limited to her statement that she made a single payment of \$6,000 on the contract to paint the windows and walls.

The court also notes an unexplained discrepancy in plaintiff's list of damages. She claims \$25,350 for Federico Soto Repair, but the amount stated in the invoice she attaches as exhibit 6 is \$33,800. Plaintiff fails to explain the difference or show the amount she actually paid or agreed to pay.

Furthermore, plaintiff fails to address the proper measure of damages. Under California law, "[t]he measure of damages for breach of contract to construct improvements on real property where the work is to be done on plaintiff's property is the reasonable cost to the plaintiff to finish the work *in accordance with the contract*." (*Walker v. Signal Companies, Inc.* (1978) 84 Cal.App.3d 982, 993, italics added.) Thus, plaintiff is entitled to recover the reasonable cost necessary to obtain the performance for which she contracted, less the unpaid portion of the original contract price. (CACI No. 4531 [to recover damages, plaintiff must prove reasonable cost of completing remodeling to comply with the terms of contract agreed to by parties]; *Fairlane Estates, Inc. v. Carrico Construction Co.* (1964) 228 Cal.App.2d 65, 72-73.)

For example, in *Fairlane Estates*, the court applied the proper measure of damages for breach of a construction contract as follows:

By the contract the plaintiff agreed to pay the defendants \$21,000 for the work to be performed by the latter. The plaintiff's president testified that the reasonable cost of performing this work at the time of trial was \$27,500. . . . The measure of damages applied by the court on account of the defendants' failure to perform was the difference between the aforesaid amounts, viz., the contract price and the price of completing the work the defendants had agreed to perform. This was proper.

(*Fairlane Estates, Inc. v. Carrico Construction Co. supra*, 228 Cal.App.2d at p. 72.)

Here, Plaintiff alleges she contracted to receive the completed painting work for \$121,500 (\$67,900 + \$53,600). Assuming plaintiff paid defendant \$51,000 (\$45,000 + \$6,000) before defendant's breach, the unpaid balance would be \$70,500 (\$121,500 - \$51,000). Had plaintiff presented evidence to show she reasonably paid \$168,110.55 to obtain conforming performance, her resulting benefit-of-the-bargain damages would be \$168,110.55 less the \$70,500 unpaid balance, or \$97,610.55. (Plaintiff would have had to pay the remaining \$70,500 under her original contracts with defendant, had defendant fully performed.)

Assuming plaintiff provides evidence of the payments she made, another way of reaching the same total for plaintiff's damages is as follows:

Total actually paid by plaintiff: \$51,000.00 + \$168,110.55 = \$219,110.55

Less original bargain: \$219,110.55 - \$121,500 = \$97,610.55

Conclusion

In sum, Plaintiff fails to provide the necessary proof and authority to support her claim for damages based on the measure of damages for the theory upon which she elects to recover. Therefore, the court denies the application for default judgment without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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